



CHAPTER xv

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936 relating to
Kilmarnock Corporation. [17th July 1957.]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation 26 Geo. 5 &
Procedure (Scotland) Act 1936 and it is requisite that the said 1 Edw. 8 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto Confirmation
annexed is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Kilmarnock Corporation Short title.
Order Confirmation Act 1957.

SCHEDULE

KILMARNOCK CORPORATION

Provisional Order to confer further powers upon the provost magistrates and councillors of the burgh of Kilmarnock with respect to the local government of the burgh.

Whereas the provost magistrates and councillors of the burgh of Kilmarnock are the municipal and local authority for the burgh of Kilmarnock in the county of Ayr and are charged with the administration and management thereof:

And whereas it is expedient to make further and better provision with respect to the local government of the burgh and to confer further powers upon the Corporation with respect thereto:

And whereas the purpose aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

Short title.

1. This Order may be cited as the Kilmarnock Corporation Order 1957.

Commencement of Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming this Order which date is in this Order referred to as the commencement of this Order.

Interpretation.

3. In this Order (unless there be something in the subject or context inconsistent with or repugnant to such construction) the following expressions shall have the following meanings:—

“ burgh ” means the burgh of Kilmarnock;

“ corporation ” means the provost magistrates and councillors of the burgh;

“ street ” means any highway road bridge square lane footpath close court alley or passage or any part thereof open and accessible to the public whether the same is a thoroughfare or not.

Prohibition of persons vehicles etc. on grass margins.

4.—(1) Where the Corporation maintain any grass or other area which is situated in or forms part of or adjoins any street and which is laid out or levelled for ornamental purposes any person who wilfully walks or otherwise proceeds or rides or drives any horse cattle or vehicle on over or across any such area shall be guilty of an offence and shall be liable on conviction by a court of summary jurisdiction to a penalty not exceeding twenty shillings:

Provided that this section shall not prevent a person driving a vehicle on to the grass margin of a street in an emergency or for the purpose of avoiding an accident.

20 & 21 Geo. 5
c. 43.

(2) Nothing contained in this section shall affect the duty of the Corporation under section 58 of the Road Traffic Act 1930.

5 & 6 ELIZ. 2

Kilmarnock Corporation
Order Confirmation Act, 1957

Ch. xv

5. The costs charges and expenses preliminary to and of and Costs of Order.
incidental to the preparing for obtaining and confirming of this Order
or otherwise in relation thereto shall be paid by the Corporation out
of any funds (not being in the nature of capital) rates or revenues
belonging to them or under their control or out of moneys which the
Corporation are hereby authorised to borrow for that purpose and
if paid out of borrowed moneys shall be repaid within five years from
the commencement of this Order.

PRINTED BY SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

Ch. xv

*Kilmarnock Corporation
Order Confirmation Act, 1957*

5 & 6 ELIZ. 2

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 4d. net

PRINTED IN GREAT BRITAIN

(38877)